

TCSBT Exhibit C

Certificate of Insurance (COI) Requirements

B240 – TCS Supplement to ANL366

In addition to the requirements for insurance provided in the ANL366 form, Contractor shall also adhere to the following requirements from the Laboratory's landlord and its building manager. In the event of a conflict with the insurance provisions of ANL366, the more stringent provision shall govern.

The requirements below are applicable to Contractor and its subcontractors working at Building 240.

Subcontractor must maintain insurance in accordance with the following limits and provisions and provide a Certificate of Insurance evidencing same:

1. Commercial General Liability

Including Personal Injury with limits of:

- **General Aggregate:**
\$2,000,000.00
- **Products/Completed Operations Aggregate:**
\$2,000,000.00
- **Bodily Injury/Property Damage – Per Occurrence:**
\$1,000,000.00
- **Fire Damage / Damage to Rented Premises (each occurrence):**
\$500,000.00
- **Medical Expenses (any one person):**
\$10,000.00

Commercial General Liability shall also include coverage for:

- Premises/Operations
- Products/Completed Operations
- Contractual Liability

ANL-366TCSB (November 3, 2025)

- Broad Form Property Damage
- Independent Contractors
- Personal Injury Coverage

Personal Injury Coverage shall include, but not be limited to:

- False arrest, detention, or imprisonment
- Malicious prosecution
- Libel, slander, defamation, or violation of right of privacy
- Wrongful entry or other invasion of the right of private occupancy

In the event of bodily injury or death to any number of persons in any one accident, coverage shall be not less than the above limits, and not less than Five Hundred Thousand and No/100 Dollars (\$500,000.00) for property damage.

2. Umbrella Liability

- **Umbrella Liability (per occurrence and in the aggregate):**
\$10,000,000.00

Umbrella coverage shall be written on a follow-form basis over the Commercial General Liability, Automobile Liability, and Employers Liability policies.

3. Workers' Compensation and Employers Liability

- Workers' Compensation Insurance with statutory limits applicable to the state in which operations are performed, including benefits provided under Coverage B – Employers Liability – with limits of not less than **\$1,000,000.00**.
- A waiver of subrogation is to be included under the Workers' Compensation coverage where permitted by law.
- Employers Liability insurance on all employees for the Facility not covered by the Workers' Compensation Act, for occupational accident or disease, for limits not less than **\$100,000.00** for any one occurrence, or whatever is

ANL-366TCSB (November 3, 2025)

necessary to satisfy the requirements of the umbrella liability insurance specified in paragraph 2 above.

4. Comprehensive Crime Insurance

Comprehensive crime insurance including theft, premises, transit, and depositors forgery coverage, with limits of liability as to any given occurrence of:

- **\$10,000.00** for monies and securities inside and outside the Facility; and
 - **\$100,000.00** on account of any employee dishonesty.
-

5. Automobile Liability Insurance

Automobile Liability Insurance with:

- **\$1,000,000.00** Bodily Injury/Property Damage – Combined Single Limit, for any owned, non-owned, and hired automobiles, trucks, and trailers.
-

6. Property – Subcontractors' Personal Property

Subcontractors' and sub-subcontractors' personal property (e.g., equipment, machinery, tools) shall be insured by the Subcontractor. If the Subcontractor elects to self-insure such risks, the Subcontractor shall hold the Company harmless and hereby waives rights of recovery against the Company therefor.

7. Professional Liability

Professional Liability coverage with limits of not less than:

- **\$100,000.00 per claim, or**
- **\$1,000,000.00 annual aggregate.**

Additional requirements:

- Policy shall be on a **claims-made** basis.

ANL-366TCSB (November 3, 2025)

- Policy shall include coverage for bodily injury and property damage and retroactive coverage back to the first date of professional services.
 - Subcontractor is required to maintain coverage for a period of not less than **four (4) years** following the end of work.
-

8. General Requirements

- All coverages shall apply to **all locations** where contractors/subcontractors are performing services for the holder of the certificate.
- General Liability, Auto Liability, and Umbrella shall be **primary and non-contributory**.
- In the event of any cancellation or non-renewal or material reduction in coverage, notice must be given at least **thirty (30) calendar days** in advance to the Certificate Holder, in accordance with policy provisions.
- All companies writing policies shall be a minimum of **A.M. Best rated A or higher**.
- Subcontractors' policies shall be endorsed to require Subcontractor's insurer to provide Company at least thirty (30) days' notice of any cancellation or material modification in the coverage required herein. A copy of such endorsement shall be provided to Company with the Certificate of Insurance required herein.
- If the Subcontractor fails to furnish and maintain insurance as required by the Contract Documents, the Company may purchase such insurance on behalf of the Subcontractor, and the Subcontractor shall pay the cost thereof to the Company upon demand.
- Except as otherwise expressly provided herein, all insurance policies required by this Exhibit shall be kept in full force and effect until the date of final payment to Subcontractor and the completion of all services designated hereunder.
- Compliance or non-compliance by the Subcontractor with respect to the insurance requirements set forth in the Contract Documents shall not

ANL-366TCSB (November 3, 2025)

relieve the Subcontractor of any liability it may have pursuant to any indemnification or other covenant or agreement under the Contract Documents.

9. Additional Insured / Loss Payee Requirements

The insurance required under items **1 (Commercial General Liability)**, **2 (Umbrella)**, and **5 (Automobile Liability)** above shall:

- Be written on an **occurrence** basis; and
- Name Company, Owner, and such other parties as requested by Company as additional insureds and/or loss payees, including, without limitation:

Description of Entity	Description of Property	Name & Address
Lenders Loss Payable	Real & Personal Property	UChicago Argonne, LLC
Lenders Loss Payable	Real & Personal Property	Theory and Computing Sciences Building Trust, a Delaware Trust
Lenders Loss Payable	Real & Personal Property	The United States of America

ANL-366TCSB (November 3, 2025)

Description of Entity	Description of Property	Name & Address
Lenders Loss Payable	Real & Personal Property	The Argonne National Laboratory
Lenders Loss Payable	Real & Personal Property	Joseph Starshak
Lenders Loss Payable	Real & Personal Property	Computershare Trust Company, N.A.
Lenders Loss Payable	Real & Personal Property	Computershare Trust Company, N.A., as attorney-in-fact, Wells Fargo Bank, N.A.
Lenders Loss Payable	Real & Personal Property	United States Department of Energy
Lenders Loss Payable	Real & Personal Property	CBRE, Inc.

ANL-366TCSB (November 3, 2025)

Description of Entity	Description of Property	Name & Address
Lenders Loss Payable	Real & Personal Property	Fifth Third Bank, National Association
Lenders Loss Payable	Real & Personal Property	Tom Starshak, Starshak Winzenburg & Co.
Lenders Loss Payable	Real & Personal Property	Mary Spada, Digitale, Inc.
Lenders Loss Payable	Real & Personal Property	JMY Consulting, Inc.
Lenders Loss Payable	Real & Personal Property	Michael Simmons, TCSB-P3, LLC
Lenders Loss Payable	Real & Personal Property	Anatolij Kushnir, TCSB-P3, LLC

Description of Entity	Description of Property	Name & Address
Lenders Loss Payable	Real & Personal Property	A.I. Evenhouse & Co., P.C.
Lenders Loss Payable	Real & Personal Property	Kilpatrick Townsend & Stockton LLP
Lenders Loss Payable	Real & Personal Property	T5 Construction Services
Lenders Loss Payable	Real & Personal Property	Harris Winick Harris LLP

10. Policy Forms and Endorsements

- The insurance under **Item 1 (Commercial General Liability)** shall be on the most current edition of **ISO form CG 00 01** or its equivalent and shall include contractual liability coverage for broad form indemnities under Coverage A.
- The coverage under **Item 2 (Umbrella)** shall contain **express follow-form language** and shall have the same inception and expiration dates as the insurance required under Item 1, or contain a **non-concurrency endorsement**.

ANL-366TCSB (November 3, 2025)

- Each policy of insurance shall contain an endorsement reading substantially as follows:

“The insurer waives any right of subrogation against the United States of America and the Department of Energy’s Management and Operating Contractor at the Argonne National Laboratory (UChicago Argonne, LLC) which might arise by reason of any payment made under this policy, consistent with the Parties’ respective indemnity obligations.”

- **Cancellation Notice:**

Should any of the above-described policies be cancelled before the expiration date thereof, notice will be delivered in accordance with the policy provisions.